

25PSCV02687 25PSCV02687

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Estrada v. Matthew Wilkie, et.

al., Case No. 25PSCV02687

ORDER ON

MOTIONS TO BE RELIEVED AS COUNSEL

1. Counsel for Defendant Matthew Wilkie's Motion to be Relieved as Counsel is granted.

2. Counsel for Defendant Cal Developers, Inc.'s Motion to be Relieved as Counsel is granted.

Background

Plaintiff Anthony Estrada ("Plaintiff") alleges that Defendant Matthew Wilkie ("Wilkie") reached out to Plaintiff to invest in a film that never came to fruition. (Compl., ¶ 2.) Wilkie allegedly never disclosed to Plaintiff that he has a criminal record, including felony convictions for money laundering, grand theft, diversion of construction funds, false statements to sell/buy security, and passing a non-sufficient funds check exceeding \$950. (Id. at ¶1.)

Plaintiff alleges that Wilkie and his company, Defendant Cal Developers, Inc. ("Cal Developers") stole funds from Plaintiff from March 25, 2024 to April 26, 2024 in a total of \$51,500. (Id. at ¶ 3.)

On July 23, 2025, Plaintiff filed a complaint against Wilkie, Cal Developers, and Does 1 through 100 asserting the following

causes of action: (1) Breach of Contract, (2) Theft, (3) Fraud/Intentional Misrepresentation/Concealment or Nondisclosure of Facts/Promise with No Intent to Perform, and (4) Violation of Business & Professions Code Section 17200.

On July 13, 2026, counsel for Defendants Wilkie and Cal Developers filed motions to be relieved as counsel.

Discussion

Cummins & White, LLP ("Counsel") seeks to be relieved as counsel for Defendants Wilkie and Cal Developers.

Counsel's motions both properly include a Notice of the Motion to be Relieved as Counsel-Civil (form MC-051), Declaration in Support of Attorney's Motion to be Relieved as Counsel-Civil (form MC-052), service on the parties, and an Order Granting Attorney's Motion to be Relieved as Counsel-Civil (form MC-053). (Cal. Rules of Court, Rule 3.1362.)

"The declaration must state in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1)." (Id.) In both motions, Counsel represents an inability to continue representation of Defendants due to an "irreconcilable breakdown of the attorney-client relationship" and that further details "cannot be provided without jeopardizing counsel's duty of confidentiality and the attorney-client privilege." The Court finds this declaration to sufficiently state the reason why a consent under Code of Civil Procedure section 248(1) was not brought. Moreover, where issues of confidentiality prevent "counsel from further disclosure and the court [accepts] the good faith of counsel's representations, the court should find the conflict sufficiently established and permit withdrawal. (Manfredi & Levine v. Superior Court (1998) 66 Cal.App.4th 1128, 1133.)

Accordingly, the Court grants Counsel's motions to be relieved as counsel for Defendants Wilkie and Cal Developers.